

Avadh Saran Singh v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 16 March 2023 · WRIT - C No. 1977 of 2023 · **Writ disposed; inspection report, objection and final order directed; recovery stayed.**

HEADNOTE

Writ against demand notices for alleged theft was disposed of on the standing counsel's statement. The petitioner must approach opposite party no. 3 within four working days, receive the inspection report within three days, and may file his objection within one week. That officer must consider the objection and pass a final order within three weeks. Recovery under the demand notice dated 17.02.2023 stays for four weeks or until the decision, only if the petitioner keeps the schedule.

FACTUAL SUMMARY

The petitioner runs Awadh Rasri Udyog at Imiliya Gurudayai, Baragaon, Gonda, on a 7 kW connection after a separate 5 kW connection was permanently disconnected on payment of dues. On 27 January 2023 a team inspected the factory, alleged theft, and, he says, sought Rs 2,50,000 for a favourable report, which he refused. He was later made to sign unread papers. A provisional assessment of 3 February 2023 was followed by a demand notice dated 17 February 2023, issued without an inspection report and without considering his objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)(i)

Objection to provisional assessment before final demand

HOLDING

Where the consumer said the inspection report was not supplied and his objection to the provisional assessment was not considered before the demand notice dated 17.02.2023, the writ was disposed of by directing him to approach opposite party no. 3 within four working days, that officer to supply the inspection report within three days, a representation or objection within one week of receipt, and a final order on the objection within three weeks. Recovery under that demand notice stays for four weeks or until the decision, and the benefit is available only if the petitioner keeps the schedule. ¶ 5-8

FLAG Petition cites Clause 6.8(a)(vi) with 6.8(b)(i). Catalog keys list 6.8(a)(iv) and 6.8(v), not 6.8(a)(vi). The Court did not correct or construe sub-clause (a)(vi).

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay On the standing counsel's statement, opposite party no. 3 must supply the inspection report, receive the objection, and pass a final order within three weeks, with recovery under the demand notice dated 17.02.2023 stayed for four weeks or until that decision. ¶ 5-7

para-6.8-objection-alternate-remedy The demand notices were neither quashed nor upheld. The petitioner was relegated to a time-bound objection before opposite party no. 3 after receiving the inspection report. ¶ 6-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.8 WAS BREACHED AND WHETHER THE DEMAND NOTICE DATED 17.02.2023 WAS LIABLE TO BE QUASHED

Left to opposite party no. 3 after supply of the inspection report and consideration of the objection. ¶ 3-6

NOT DECIDED — WHETHER ELECTRICITY THEFT WAS MADE OUT AND WHAT SUM, IF ANY, WAS PAYABLE

Not examined. The demand was neither quashed nor affirmed. ¶ 3-6

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.